Nawal Kishor Gupta vs The State, Govt. Of Nct Of Delhi on 21 March, 2023

Author: Jasmeet Singh

Bench: Jasmeet Singh

$~25
* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 916/2023
   NAWAL KISHOR GUPTA .....
   Through: Mr Vikas Pal, Mr Parvez
   Mr Prateek Singh, Advs.
versus
THE STATE, GOVT. OF NCT OF DELHI ..... Responden
Through: Mr Utkarsh, APP for State
SI Amit Kumar, PS- Chitranjan Pa
CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 21.03.2023 Exemption allowed, subject to all just exceptions. The application stands disposed of.

BAIL APPLN. 916/2023 & CRL.M.(BAIL) 400/2023 This is an application seeking anticipatory bail in FIR No. 0074/2023 dated 22.01.2023, under Sections 420/120-B IPC, registered at Police Station- Chitranjan Park.

As per the FIR, the applicant along with Jaidev Soni had fraudulently taken gold loan from Rupeek Capital Private Limited (hereinafter referred to as „RCPL) and an amount of Rs. 16,81,092/- has been disbursed by RCPL in favour of the applicant and the applicant failed to provide the necessary security documents to secure the said loan. Hence, the FIR.

It is stated by Mr Pal, learned counsel for the applicant that the applicant has neither forged the documents nor kept any proceeds out of Rs. 16,81,092/- except Rs. 4,400/- and has transferred the entire amount to Jaidev Soni. He states that Jaidev Soni had forged and fabricated documents.

He further states that the entire amount of Rs. 16,81,092/- has been secured as the account of Jaidev Soni has been frozen by the police. He states that no notice under Section 41-A Cr.P.C has been served upon the applicant.

It is stated by Mr Utkarsh, learned APP that in the present case though the initial FIR was under Sections 420/120-B IPC, subsequently since Section 467 IPC has been added and the maximum punishment is 10 years, hence, no notice under Section 41-A Cr.P.C was served. In addition, it is also stated that the custodial interrogation of the applicant was required as he has forged documents and played a fraud on the complainant and admittedly Rs. 16,81,092/- has been credited to the bank

account of the applicant.

I have heard learned counsel for the parties.

In the present case, admittedly Rs. 16,81,092/- has been credited to the account of the applicant without the applicant giving proper security document to RCPL i.e. the complainant. The FIR clearly suggests that the applicant had taken this amount by transferring his gold loan account from Dhanvarsha which has not been done. Hence the intention of the applicant seems to be dishonest from the start. The custodial interrogation of the applicant is required to unearth the modus operandi used by the applicant and by Jaidev Soni to defraud people.

For the aforesaid reasons, I am not inclined to entertain the application seeking anticipatory bail. The application is dismissed.

JASMEET SINGH, J MARCH 21, 2023/sr Click here to check corrigendum, if any